

HOUSE BILL 1445

By Gillespie

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 8; Title 9 and Title 38, relative to law
enforcement agencies.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 38, Chapter 8, Part 1, is amended by adding the following as a new section:

(a) As used in this section, "eligible law enforcement agency" means a city, municipal, or county law enforcement agency that has vacancies in ten percent (10%) or more of the agency's funded law enforcement officer positions.

(b) There is created within the state general fund a special account to be known as the law enforcement officer recruitment fund. The purpose of this fund is to assist eligible law enforcement agencies in officer recruitment.

(c) The department of finance and administration, office of criminal justice programs, shall administer the fund and establish procedures for eligible law enforcement agencies to apply for grants awarded pursuant to this section. The procedures must include, but are not limited to:

(1) Application requirements;

(2) Criteria for determining the amount of each grant awarded and eligible grant expenditures; and

(3) Reporting requirements for law enforcement agencies receiving grants to ensure accountability and measure program effectiveness.

(d) Subject to available funds, the office of criminal justice programs shall allocate and disburse grants from the fund to eligible law enforcement agencies pursuant

to the procedures established in subsection (c). Grant funds must be expended only for the purposes of officer recruitment by eligible law enforcement agencies.

(e) Moneys deposited into the fund must be used only to implement and administer the purposes set forth in this section. In addition to appropriations made to the fund, the department may accept other funds, public or private, by way of gift or grant to the fund. A gift or grant must be deposited into the fund to be expended in accordance with this section.

(f) The state treasurer shall invest moneys in the fund for the benefit of the fund in accordance with § 9-4-603. Interest accruing on investments and deposits of the fund must be credited to and remain part of the fund.

(g) Any balance remaining unexpended at the end of a fiscal year in the fund must be carried forward into the subsequent fiscal year.

(h) The department shall promulgate rules necessary to effectuate this section. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. This act is not an appropriation of funds, and funds must not be obligated or expended pursuant to this act unless the funds are specifically appropriated by the general appropriations act.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.